this case for all purposes as of March 1, 2026. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

9. 9:00 AM CASE NUMBER: C24-00320
CASE NAME: CHARLES BARRANTES VS. BEVERAGES & MORE, INC.
***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM.**
FILED BY:
<u>*TENTATIVE RULING:*</u>

The Settlement Administrator's declaration shows that the settlement terms have been implemented. The Settlement Administrator is directed to disburse the remaining 5% of attorney's fees to plaintiff's counsel. No further proceedings are contemplated.

10. 9:00 AM CASE NUMBER: C24-00492
CASE NAME: THELMA JACKSON VS. JOHN PAULDING
***HEARING ON MOTION IN RE: CONFIRM REFEREE REPORT AND TO ALLOCATE SALE PROCEEDS (CONTINUED FROM: 12/11/2025 AND 01.08.26)**
FILED BY:
<u>*TENTATIVE RULING:*</u>
<u>Introduction</u>

Before the Court is the continued motion by Partition Referee David W. Martin ("Referee") for an order approving the Referee's Report and allocating and distributing the proceeds of the sale of 5648 Burlingame Avenue in Richmond, Contra Costa County, California. Referee David W. Martin has provided the Court with an updated and more detailed breakdown of costs and expenses of the allocation of the proceeds.

The Court has considered the statement of offset submitted by Defendant John Paulding. The Court will not grant any of the requested offset amounts. Assuming that they were otherwise proper, John Paulding failed to produce sufficient evidence supporting the amount or actual payment of the requested offset line items.

At the January 8, 2025, hearing the Court continued the hearing to give Defendants a chance to submit supporting documents to entail the detailed expenses.

<u>The Court approves Referee David W. Martin updated proposed order for allocation of the proceeds for the sale of 5648 Burlingame Avenue in Richmond, Contra Costa County, California subject to including $38,020.00 to Plaintiff for back rent for the subject time period less the property insurance paid by Defendants during the subject time period.</u>

<u>Legal Standard for Imposing Offsets During a Partition Action</u>

California Code of Civil Procedure §872.140 provides: "The court may, in all cases, order allowance, accounting, contribution, or other compensatory adjustment among the parties according to the principles of equity." Further, the import of the foregoing rule is found in the Law Revision Commission Comments to §872.140, which provide, that it is intended to allow courts to make adjustments among owners for "such items as common improvements, unaccounted rents and profits, and other matters for which contribution may be required."

When the partition action involves one co-owner out-of-possession (usually the plaintiff) and one co-owner in possession (usually the defendant), the owner out-of-possession may claim the value of occupancy of the property. Generally, a claim for the implied rental value of exclusive possession by one co-owner depends upon a showing of actual ouster. As one court explained: "In order for a cotenant who is not in possession to recover the rents and profits, or the value of possession, from the cotenant in possession, he must establish that there has been an ouster…." (See, *Estate of Hughes* (1992) 5 Cal. App. 4th 1607, 1612.)

"An ouster, in the law of tenancy in common, is the wrongful dispossession or exclusion by one tenant of his cotenant or cotenants from the common property of which they are entitled to possession. The ouster must be proved by acts of an adverse character, such as claiming the whole for himself, denying the title of his companion, or refusing to permit him to enter. Actual or constructive possession of the ousted tenant in common at the time of the ouster is not necessary." (See, *Zaslow v. Kroenert* (1946) 29 Cal. 2d 541, 548. Emphasis added.)

<u>Analysis</u>

Plaintiff's Fair Market Value Rent Claim from November 2023 to May 2025

Plaintiff acknowledges its candor to the in not asserting compensation from Defendants' March 17, 2022, Probate filing challenging Plaintiff's title to the Subject Property, as it falls outside the default two-year Statute of Limitations period for claims of back-rent not based on written agreement. Although Plaintiff did file the current suit on February 23, 2025, Plaintiff did not ask for back-rent until the filing of its Claim for Equitable Compensatory Adjustment Following Partition Sale filed on November 26, 2025.

Defendants also filed a dueling statement of offset the same day on November 26, 2025. Defendants' request for offset go as far back as sixteen years. However, there is no stated legal basis for Defendants' offset. Since there is no stated grounds, the Court will treat Defendants' offset as a claim based on an unwritten agreement which would share the same statute of limitations as Plaintiff described above.

Therefore, Plaintiff bases her back-rent claims against Defendants from the Probate Court's November 3, 2023, Order confirming the ultimate state of title to the Subject Property prior to Partition Sale, to Defendants' finally vacating the Subject Property in May 2025. (See CCP § 339.) Therefore, Plaintiff bases her back-rent claims against Defendants from the Probate Court's November 3, 2023, Order confirming the ultimate state of title to the Subject Property prior to Partition Sale, to Defendants' finally vacating the Subject Property in May 2025.

Plaintiff argues that on March 17, 2022, following Ms. Hart's death on August 8, 2021, Defendants commenced Probate Court litigation in this County (i.e. Case No. MSP22-00345) denying the title of [herein Plaintiff] effectively ousting Plaintiff. (See, supra, *Zaslow v. Kroenert* (1946) 29 Cal. 2d 541, 548.)

Accordingly, Plaintiff is entitled to claim imputed fair market value rent against defendants following their effective ouster of Plaintiff from the Subject Property. Pursuant to Evidence Code §720, Plaintiff offers the expert opinion of California-licensed real estate salesperson, Jeffrey Good, and adopts his valuations pursuant to Evidence Code §813(a)(2) as her own in support of the following claims of fair market value rental compensation from defendants. Mr. Good's Declaration regarding his professional qualifications and opinion of fair market value rent for the years relevant to this matter opines that a principal figure of $40,270.00 in uncompensated fair market value rent is owed to Plaintiff. Including 10% interest, Plaintiff claims a total of $44,108.64 in uncompensated rent with interest.

Defendant Timothy Paulding objects to imputed rent based on ouster on multiple grounds. However, none of the grounds are supported by statutes, case law, or any legal authority.

In California, Judges may ignore unsupported arguments entirely. (*Walton v. Superior Court* (1999) 77 Cal.App.4th 886, 893 [Courts are not obliged to search the law for arguments not provided by the parties], See, *In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 830 [arguments not supported by legal authority are waived and need not be considered by the court], see also, California Rules of Court, Rule 3.1113(a): Points not supported by legal argument or authority may be disregarded.)

Defendants' Offset Claims from November 2023 to May 2025

Mortgage Payments: None. Payment history stops at 2018.

Maintenance Payment: None. Payment history stops at 2023.

Insurance Payments: $2,250.00 (2024 to July 2025; additional two months in 2025 offsets the missing 2 months in 2023.)

Property Taxes: None. Payment history stops at 2023.

Conclusion

The Court grants Plaintiff its principal figure of $40,270.00 in uncompensated fair market value rent without interest. The Court grants Defendants' offset of $2,250.00 in insurance payment for the property made during the subject time period. Thus, the Court grants $38,020.00 to Plaintiff for back rent for the subject time period less the property insurance paid by Defendants during the subject time period.

Based on the explanation provided above, **the Court approves Referee David W. Martin updated proposed order for allocation of the proceeds for the sale of 5648 Burlingame Avenue in Richmond, Contra Costa County, California subject to including $38,020.00 to Plaintiff for back rent for the subject time period less the property insurance paid by Defendants during the subject time period.**

11. 9:00 AM CASE NUMBER: C24-00492
CASE NAME: THELMA JACKSON VS. JOHN PAULDING